STATE OF NORTH CAROLINA

Example County County

File No. 24-CR-001234

Scan No.(s)

In The General Court Of Justice
☐ District ☐ Superior Court Division

STATE VERSUS

Name And Address Of Petitioner (type or print full name)
Jordan Avery Reyes
118 Maple Street

Springfield XX 01234

Drivers License No.	State	Race	Sex
	XX		

Date Of Birth	Full Social Security No.	Age At Time Of Offense
1991-04-17		

PETITION AND ORDER OF EXPUNCTION UNDER G.S. 15A-146(a2)

(NOT GUILTY OR NOT RESPONSIBLE)

G.S. 15A-146, 15A-150

Name And Address Of Petitioner's Attorney For Expunction Petition
Jordan Avery Reyes

Springfield XX 01234

NOTE TO PETITIONER: *List the arresting agency and any State or local government agency that has a record of your case. You **must** provide complete information for each agency. The clerk of superior court will send a copy of this order, if granted, to the agency name(s) and address(es) provided below. The clerk will **not** provide addresses for you. Do not list the courts, the State Bureau of Investigation, the Department of Adult Correction, or the Division of Motor Vehicles; if the order is granted, those agencies will be notified automatically. Do not list any private entity, like a company that provides criminal background checks. The clerk will not send a copy of this order to any entity that is not an agency of the State of North Carolina or one of its local governments. A private entity required to expunge records will be notified directly by the State or local agencies that distribute criminal justice information to that entity.*

Name And Address Of Arresting Agency	Name And Address Of Other Agency (if any)	Name And Address Of Other Agency (if any)

☐ Check here to indicate that additional agencies and/or additional file nos. and offenses are listed on an AOC-CR-285 form that is attached to this petition. *(attach form)*

File No.(s)	Date Of Arrest	Offense Description	Date Of Offense	Disposition	Date Of Disposition
24-CR-001234	2019-03-08				

PETITION TO EXPUNGE

I hereby petition for an expunction pursuant to G.S. 15A-146(a2) and certify as follows:

1. In this court of the county named above I was charged with (a) misdemeanor(s) or felony(ies) (or an infraction under G.S. 18B-302(i) prior to December 1, 1999), the file number(s) of which is/are set out above.
2. The charge(s) listed above was/were disposed of by a finding of not guilty or finding of not responsible.
3. All related charges have reached final disposition.
4. ☐ There is a civil revocation record that resulted from the offense(s) I am seeking to expunge.

I certify that this petition has been filed in this case and that the information set forth above is a complete and accurate statement of the information on file in the office of the clerk of superior court.

Date	Name (type or print)	Signature	
			☐ *Petitioner* ☐ *Petitioner's Attorney*

(Over)

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FINDINGS OF FACT

The Court makes the following findings of fact:

1. Petitioner was charged with those offenses indicated on Side One.
2. Said charges were disposed of as indicated in the Petition on Side One.
3. All related charges have reached final disposition.
4. ☐ There is a civil revocation record that resulted from the offense(s) the petitioner is seeking to expunge.
5. Petitioner ☐ is ☐ is not eligible for an expunction of the offense(s) listed on Side One. If not eligible, it is because:

Jordan Avery Reyes

Jordan Avery Reyes.

ORDER

Therefore, the Court hereby ORDERS:

☐ 1. The petition is granted. It is ordered that any and all entries relating to the petitioner's apprehension, charge, trial, or conviction and any civil revocation of his/her drivers license resulting from the criminal charge shall be expunged from the records of the court. All law enforcement agencies, the Department of Adult Correction, the Division of Motor Vehicles, and any other State or local government agency identified on Side One and on any AOC-CR-285 form that is attached to this petition shall expunge from all official records any entries relating to the person's charge, conviction, if any, and any civil revocation of his/her drivers license resulting from the criminal charge. No agency shall expunge a record of a civil revocation entered pursuant to G.S. 20-16.2, no agency shall expunge a record of a civil revocation prior to the final disposition of any pending civil or criminal charge based upon the civil revocation, and the Division of Motor Vehicles shall not expunge records for which expunction is otherwise prohibited by G.S. 15A-151.

☐ 2. For the reason(s) identified in Finding No. 5, the petition is denied.

NOTE TO CLERK: *If denied, file this Order in the case file. Upon expiration of the deadline for appeal from a denial of this Order, destroy any documentation provided with the petition, such as a criminal history report. If granted, send a certified copy of this Order to the petitioner at the address listed on Side One or an updated address as provided by the petitioner.*

Date	*Name Of Presiding Judge (type or print)*	*Signature Of Presiding Judge*

CERTIFICATION BY CLERK

I hereby certify that this form is a true and complete copy of the original in this case, and if granted, a certified copy of this Order was sent on the date shown below to the petitioner, the State Bureau of Investigation, the Department of Adult Correction, the Division of Motor Vehicles, and to the arresting agency and any other State or local government agency identified on Side One and on any attachment to this petition.

Date	*Name (type or print)*	*Signature Of Clerk*	☐ *Dep. CSC* ☐ *Asst. CSC* ☐ *Clerk Of Superior Court*	**SEAL**

NOTE TO CLERK: *If granted, **always** send a certified copy of this Order under seal to the petitioner, to **all** the agencies listed in Certification By Clerk above, and to the NCAOC. Send copies for the arresting agency and additional agencies to the addresses provided by the petitioner. Send SBI, DAC, DMV, and NCAOC copies to:*

State Bureau of Investigation
Attn: Expunction Unit
3320 Garner Road
Raleigh, NC 27610

NC Department of Adult Correction
Attn: Combined Records Section
4226 Mail Service Center
Raleigh, NC 27699-4226

NC Division of Motor Vehicles, Driver and Vehicle Services, Driver Assistance Branch
Attn: Hearings/Adjudication Unit
3118 Mail Service Center
Raleigh, NC 27699-3118

NC Administrative Office of the Courts
Attn: Records Officer
PO Box 2448
Raleigh, NC 27602

NOTE TO PETITIONER: *If this petition is granted, the clerk of superior court will send you a certified copy of the final order for your records at the address listed on Side One. If you move, you must notify the clerk in writing of your change of address in order to receive a certified copy. After the case is expunged, the clerk of superior court will have no record of the case and will be unable to provide you with any documentation of the case. This includes the expunction order; it will be destroyed with the case file.*

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